Montgomery County District Court

Cause No. 2024-CV-0049

Donna Morris, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	6-27-24
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defenadnt generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence proximately caused or contributed to the collision alleged in the Petition. Plaintiff failed to keep a proper lookout, failed to yield the right-of-way to oncoming traffic, and failed to control the speed of the vehicle under the circumstances. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and Plaintiff may be barred entirely if that percentage exceeds fifty percent.

Second, Defendant invokes the proportionate responsibility provisions of Chapter 33 and requsets that the trier of fact determine the percentage of responsibility of every responsible third party and settling person, as permitted by law.

Third, Defendant asserts that any damages claimed were caused by a preexisting or subsequent condition unrelated to the collision, and that Plaintiff failed to mitigate damages by pursuing reasonable medical treatment and returning to available work.